

APEX INDUSTRIAL SUPPLY
1200 Industrial Parkway, Suite 400 | Columbus, OH 43215
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MASTER SUPPLY AGREEMENT
Contract ID: CTR-2024-1000

1. PARTIES

This Master Supply Agreement ('Agreement') is entered into as of January 26, 2024 between Apex Industrial Supply, Inc. ('Supplier'), a Delaware corporation with principal offices at 1200 Industrial Parkway, Suite 400, Columbus, OH 43215, and Caterpillar Inc. ('Customer'), for the supply of industrial products as described herein.

Customer Type: End Consumer
Customer Region: Northeast
Customer Contact: James Mitchell, Procurement Manager

2. TERM AND EFFECTIVE DATE

This Agreement shall be effective from January 26, 2024 through January 24, 2029, a period of 5 years. Either party may terminate this Agreement with ninety (90) days written notice. Upon expiration, the Agreement shall automatically renew for successive one-year periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration date.

3. PRODUCTS AND PRICING

This Agreement covers products in the following categories: Adhesives.

Pricing shall be in accordance with the following volume-based tier structure:

Tier 1 (1-99 units): \$6.50 per unit
Tier 2 (100-499 units): \$5.98 per unit
Tier 3 (500+ units): \$5.52 per unit

Prices are subject to the annual price adjustment provisions described in Section 6. All prices are FOB Supplier's warehouse unless otherwise specified.

4. TRADE TERMS

Trade Type: Spa
Trade Value: \$40,000.00
Payment Schedule: Annual
Payment Terms: Net 30

5. SPECIAL PROVISIONS (END-CONSUMER)

Consignment: Product remains Supplier's property until consumed by Customer. Monthly reconciliation of consumed inventory.

Special Pricing Agreement (SPA): Pricing in this Agreement applies exclusively to the D11 Track Assembly. Customer shall provide quarterly program consumption reports.

Annual Price Escalation: Prices may be adjusted annually based on Fixed 3% index, capped at 7% per year.

6. GENERAL TERMS

Confidentiality: Both parties agree to maintain confidentiality of pricing, trade terms, and

volume data disclosed under this Agreement.

Force Majeure: Neither party shall be liable for delays caused by circumstances beyond reasonable control.

Governing Law: This Agreement shall be governed by the laws of the State of Ohio.

Entire Agreement: This Agreement, together with all Exhibits, constitutes the entire understanding between the parties.

APEX INDUSTRIAL SUPPLY, INC. CATERPILLAR INC.

Authorized Signature Authorized Signature
Date: January 26, 2024 Date: January 26, 2024